

25STCV33981 25STCV33981

County: los-angeles

Division: Civil Law and Motion

Department: 514

Hearing date: 2026-07-10

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Case Number: 25STCV33981 Hearing Date: July 10, 2026 Dept: 514

Hwang v. Ralphs Grocery Company

25STCV33981

Plaintiff's Motion for Trial Preference

Tentative Ruling

The motion is granted.

Background

On November 19, 2025, Yong Hwang ("Plaintiff") filed a complaint against Ralphs Grocery Company ("Defendant") and Does 1 through 50 for arising out of an alleged slip and fall incident at a grocery store operated by Defendant on West Ninth Street in Los Angeles on July 12, 2024.

On December 23, 2025, Defendant filed an answer.

On April 13, 2026, Defendant filed a cross-complaint against HRA 9th & Flower, LP and Roes 1 through 20. On July 8, 2026, Defendant filed a request to dismiss the cross-complaint without prejudice.

Currently before the Court and set for hearing on July 10 is a motion for a trial preference.

On April 6, 2026,

Plaintiff filed her first motion for trial preference. On April 30, 2026, the Court denied that motion on procedural grounds, without prejudice.

On June 2, 2026,

Plaintiff filed the pending motion for trial preference. No opposition has been filed.

Legal Standard

Code of Civil

Procedure section 36, subdivision (a) provides:

“A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if it makes both of the following findings:

(1)

The party has a substantial interest in the action as a whole.

(2)

The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation.”

A motion for a

preference must be “supported by a declaration of the moving party [stating] that all essential parties have been served with process or have appeared.” (Code Civ. Proc., § 36, subd.

(c)(1). The motion may be supported by a declaration by the attorney for the party seeking the preference “based upon information and belief as to the medical diagnosis and prognosis of any party.” (Code Civ. Proc., § 36.5.)

“Upon the

granting of such a motion for preference, the court shall set the matter for trial not more than 120 days from that date and there shall be no continuance beyond 120 days from the granting of the motion for preference except for physical disability of a party or a party's attorney, or upon a showing of good

cause stated in the record.”

(Code Civ. Proc.,
§ 36, subd. (f).) “Any continuance shall be for no more than 15 days and no more than one continuance for physical disability may be granted to any party. (Ibid.)

Discussion

Plaintiff seeks
an order for trial preference under Code of Civil Procedure section 36, subdivision (a) based on Plaintiff’s age and health. In order to grant the motion, the Court must find (1) that Plaintiff is over the age of 70; (2) that Plaintiff has a substantial interest in the action; and (3) that because of Plaintiff’s health, a preference is necessary to prevent prejudice to Plaintiff’s interest in the litigation.

Based on the
evidence submitted by Plaintiff, the Court makes each of these findings on this record.

The procedural
issue previously identified by the Court has been fully cured.

The motion is
granted.

Conclusion

The Court GRANTS the motion of Plaintiff Yong
Hwang for a trial preference.

The Court ADVANCES the date of trial to
October 26, 2026, at 9:30 a.m., in Department 514 of the Stanley Mosk
Courthouse.

The Court ADVANCES the date of the final status
conference to October 16, 2026, at 9:30 a.m., in Department 514 of the Stanley
Mosk Courthouse.

Moving Party is ordered to give
notice.